

Court No. - 39

Case :- WRIT - C No. - 1950 of 2021

Petitioner :- M/S Azad Ice Factory

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pranesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent nos. 1, 4 & 5 and Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2 & 3.

Instant writ petition has been filed with the following relief :

"(a) Issue a writ, order or direction in the nature of certiorari to quash the impugned recovery letter dated 19.2.2020 issued by the respondent no. 5 under Rule 141(3) of U.P. Revenue Code Rules, 2016.

(b) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to decide the representation of the petitioner dated 28.10.2020 regarding to revise the bill after adjusting the secured and other deposited amount of the petitioner.

(c) Issue a writ, order or direction in the nature of mandamus directing the respondent authorities to receive the bill amount of Rs.63,83,475/- as mentioned in the recovery letter dated 19.2.2020 in various installments without interest.

(d).....

(e)....."

Only submission made by learned counsel for the petitioner is that the petitioner may be permitted to deposit the entire outstanding electricity dues in easy instalments after adjusting the security deposit as well as amount deposited by it from time to time.

Learned counsel for the respondent - Power Corporation Limited submits that the petitioner's grievance for payment of dues in easy instalments can be considered and decided by the authority under clause 6.14 of the U.P. Electricity Supply Code, 2005 provided the petitioner deposits at least 50% of the demanded amount.

Considering the facts and circumstances of the case and without entering into the merit of the case, it is directed that the recovery proceeding against the petitioner shall be kept in abeyance provided it deposits 50% of

the demanded amount within two months from today. The rest of the amount, after adjusting the security deposit as well as the amount deposited by it from time to time, shall be deposited by the petitioner in two equal bi-monthly instalments. In case the petitioner fails to deposit the amount as directed aforesaid, the respondent - Power Corporation Limited will be at liberty to recover the amount in accordance with law.

With the aforesaid directions, the writ petition is disposed of.

Order Date :- 1.2.2021

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